

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****DENNIS WILLIAMS,****Plaintiff(s),****-against-****THE CITY OF NEW YORK and DETECTIVE
MAUREEN CAREY (BADGE NO. 5178), P.O. JOHN
DOE #1 and P.O. JOHN DOE #2,****Defendant(s).****INDEX No.****Date Purchased:**Plaintiff designates
New York County
as the place of trialThe basis of venue is
Place of Occurrence.**SUMMONS****To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 19, 2023Yours etc.,
MICHAEL F. RUBIN LAW GROUP, P.C.*Michael F. Rubin*Michael F. Rubin, Esq.
Attorneys for Plaintiff
225 Broadway, 3rd Floor
New York, N.Y. 10007
Tel. (212) 691-9393
mfr@mfrlgpc.com

TO: The City of New York Law Department
100 Church Street
New York, New York 10007

Detective Maureen Carey
Attn: Detective Squad at 6th Precinct
233 West 10th Street
New York, New York 10014

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****DENNIS WILLIAMS,****VERIFIED COMPLAINT****Plaintiff(s),****INDEX No.****-against-****THE CITY OF NEW YORK and DETECTIVE
MAUREEN CAREY (BADGE NO. 5178), P.O. JOHN
DOE #1 and P.O. JOHN DOE #2,****Defendant(s).**

Dennis Williams ("Plaintiff"), by his attorney Michael F. Rubin, Esq. complaining of the defendants herein, respectfully shows to this Court, and alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, plaintiff Dennis Williams (hereinafter "Williams"), was and still is a resident of the County of New York, in the City and State of New York.

2. At all times relevant and material herein, the defendant City of New York hereinafter "City" was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

3. At all times relevant and material herein, the defendant Detective Maureen Carey (Shield No. 5178) hereinafter "Carey" was an employee of the Police Department of the City of New York.

4. At all times relevant and material herein, the defendants P.O. John Doe #1 and John Doe #2, were employees of the Police Department of the City of New York. (The aliases John Doe #1 and #2 are used as pseudonyms as the actual names of other officers involved have yet to be determined.)

**ALLEGATIONS PERTAINING
TO ALL OF PLAINTIFF'S CLAIMS**

5. At all times relevant and material herein, the defendant City operated, maintained, managed, supervised and controlled The New York City Police Department (hereinafter "NYPD") as part of and in conjunction with its municipal functions.

6. At all times relevant and material herein, the defendants Carey, Doe #1 and Doe #2 were employees of the NYPD.

7. That at all times hereinafter mentioned and upon information and belief, the defendant City, employed and supervised Carey and Doe #1 and Doe #2.

8. Upon information and belief, Carey and Doe #1 and Doe #2 were graduates of the Police Academy of the NYPD.

9. At all times relevant hereto, the defendant City had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers Carey, Doe #1 and Doe #2 to conform their conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as plaintiff herein.

10. In addition, at all times relevant hereto, the defendant City had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officers Carey, Doe #1 and Doe #2, in the protection of the rights of plaintiff under the Constitution of the United States of America and the laws of the State of New York, including its constitution.

11. At all times hereinafter mentioned, upon information and belief, the defendant Carey, Doe #1 and Doe #2 were acting in their capacity as employees, agents and/or servants of the

mfr:Williams.dennis.compl 1-17-23

defendant of City of New York.

12. At all times hereinafter mentioned, the defendant Carey, Doe #1 and Doe #2 were acting under the color of State law.

13. At all times hereinafter mentioned, the defendants' acts constituted State action.

14. Subsequent to an investigation, Carey, Doe #1 and Doe #2 placed plaintiff under arrest in the County of New York, City and State of New York. Plaintiff was placed in handcuffs and was thereafter detained against his will and incarcerated until his release.

15. Plaintiff was arrested on September 1, 2022 in New York County, City and State of New York and was charged with Assault in the Second Degree, a violent felony offense, and related charges.

16. Without probable or just cause, grounds or provocation, Carey and /or Doe #1 and Doe #2 had the real or apparent authority to place Williams in the fear of imminent contact, placed Williams in imminent fear of imminent contact or unlawful touching, beat and touched Williams in an offensive manner that was excessive, unreasonable, unnecessary and without any privilege or justification, and touched the plaintiff in a hostile, offensive manner without his consent and with the intention of harmful or offensive bodily contact.

17. By reason of the foregoing acts by the defendants, plaintiff Williams was injured and suffered, and upon information and belief, will continue to suffer, continuous pain and anguish.

18. By reason of the foregoing acts by the defendants, plaintiff was caused emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

19. By the reason of the foregoing, plaintiff was compelled to remain incarcerated until he was released from jail.

20. Williams remained the subject of a New York City criminal court complaint until

the charges against him were dismissed on October 17, 2022.

**ALLEGATIONS PERTAINING TO PLAINTIFF'S
CLAIMS UNDER STATE LAW**

21. Before the commencement of this action, and within 90 days of September 1, 2022, a Notice of Claim containing the information required by law was duly served upon the defendant City on November 1, 2022.

22. That a hearing pursuant to New York State's General Municipal Law §50-h, has not yet been held.

23. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to the defendant City, and said defendant has neglected and/or refused to make payment or adjustment thereof.

24. This action is commenced within one (1) year and ninety (90) days after both the accrual of the causes of action alleged in this complaint, and the happening of the incidents and acts complained of herein.

**FIRST CLAIM FOR RELIEF (FOR ASSAULT AND BATTERY)
(PURSUANT TO 42 U.S.C §1983)**

25. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

26. Defendants' conduct that constituted assault and battery of plaintiff was excessive, unwarranted, unnecessary and violent and violated plaintiff's rights under the Constitution.

27. As a result thereof, plaintiff is entitled to judgment in the amount of \$1,500,000.00.

**SECOND CLAIM FOR RELIEF
(COMMON LAW ASSAULT)**

28. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

29. The defendants are liable for assault to plaintiff.

30. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

THIRD CLAIM FOR RELIEF
(COMMON LAW BATTERY)

31. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

32. The defendants are liable for battery to plaintiff.

33. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

FORTH CLAIM FOR RELIEF
(COMMON LAW NEGLIGENCE)

34. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

35. The defendant City was negligent in its operation, management, supervision and control of its police department; in the training and conduct of its officers at the aforesaid location; as a result, its employees, including Carey and Doe #1 and Doe#2, unlawfully arrested, imprisoned, and maliciously prosecuted the plaintiff.

36. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

FIFTH CLAIM FOR RELIEF (FALSE ARREST)
(PURSUANT TO 42 U.S.C §1983)

37. The plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

38. That on or about September 1, 2022, in the County of New York, City and State of New York, the defendants their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or grounds therefore.

39. That on or about the September 1, 2022, the defendant wrongfully and falsely accused Williams of the crime of assault in the second degree, a violent felony offense as that term is defined in the NYS penal Law.

40. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that Williams was guilty of such crime.

41. While the plaintiff was at the above location, the defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without probable or reasonable cause, violently handcuffed, arrested and imprisoned the plaintiff and with full force of arms, laid hold of and compelled him to go with the said defendants, and be detained and imprisoned until released from jail.

42. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct that defendant, their agents, servants and/or employee were investigating, and was forced by the defendant to submit to the aforesaid arrest and imprisonment

entirely against his will.

43. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York.

44. That the defendants, their agents, servants and/or employees, as set forth above on or about the above date, time and place, intended to confine the plaintiff, the plaintiff was conscious of the confinement, the plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

45. That by reason of false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, was denied and prevented from gaining access to medical care, was searched, and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body, the potential loss of employment and the loss of employment opportunities.

46. As a result thereof, plaintiff is entitled to judgment in the amount of \$1,500,000.00.

SIXTH CLAIM FOR RELIEF
(COMMON LAW FALSE ARREST)

47. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

48. That on or about September 1, 2022 in the County of New York, the defendants their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff, without any right or grounds therefore.

49. That on or about September 1, 2022, the defendants wrongfully and falsely accused the plaintiff of the crime of assault in the second degree, a violent felony offense as that term is

mfr:Williams.dennis.compl 1-17-23

defined in the NYS penal Law.

50. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff was guilty of any crimes.

51. While the plaintiff was present at the above location, the defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without probable or reasonable cause, detained him, illegally searched him and then arrested and imprisoned the plaintiff.

52. By reason of the foregoing, plaintiff was compelled to remain incarcerated until he was released from jail. The case was dismissed on October 17, 2022 at the request of the District Attorney.

53. That the plaintiff was wholly innocent of any criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment entirely against his will.

54. That as a result of the aforesaid accusations made by the defendants, their agents servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, and maliciously, the plaintiff was compelled to be imprisoned.

55. That the defendants, their agents, servants and/or employees, as set forth above on or about the above date, time and place, intended to confine the plaintiff, the plaintiff was conscious of the confinement, the plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

56. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

SEVENTH CLAIM FOR RELIEF (MALICIOUS PROSECUTION)
(PURSUANT TO 42 U.S.C §1983)

57. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

58. That on or about the 1st day of September 2022, while the plaintiff was lawfully and properly in New York County, City and State of New York, and at subsequent times thereafter, the defendants, their agents, servants and/or employees maliciously prosecuted and detained plaintiff, Dennis Williams, without any just right or grounds therefore.

59. That the plaintiff was and is wholly innocent of the charges he was alleged by the defendants to have committed, and was forced by the defendants to submit to court proceedings.

60. That on or about the September 1, 2022, before the Honorable presiding Judge of the Criminal Court of the City of New York, New York County the defendant, their agents, servants and employees falsely and maliciously and without probable cause or provocation charged the plaintiff with a violation under the Penal Law, to wit: §120.05 of the Penal Law of the State of New York.

61. That upon examination, the said charges were falsely and maliciously made. That a Judge of the Criminal Court of the City of New York dismissed all charges on October 17, 2022.

62. That the said criminal charges and prosecution were instituted and procured by the defendants, their agents, servants and/or employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefore. That the commencement and/or continuation of the criminal proceedings by the defendant against the plaintiff was without probable cause, was with actual malice and was terminated in favor of the plaintiff.

63. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, a body search, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his

mfr:Williams.dennis.compl 1-17-23

reputation in the community and the said plaintiff has been otherwise damaged.

64. As a result thereof, plaintiff is entitled to judgment in the amount of \$1,500,000.00.

EIGHTH CLAIM FOR RELIEF
(COMMON LAW MALICIOUS PROSECUTION)

65. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

66. That on or about September 1, 2022, the defendants, their agents, servants and/or employees maliciously prosecuted and detained plaintiff Williams without any just right or grounds therefore.

67. That the plaintiff was and is wholly innocent of the charges he was alleged by the defendant to have committed, and was forced by the defendant to submit to court proceedings.

68. That on or about September 1, 2022, before the Honorable presiding Judge of the Criminal Court of the City of New York, the defendants, their agents, servants and employees maliciously and without probable cause or provocation charged the plaintiff with a violation under the Penal Law, to wit: § 120.05 of the Penal Law of the State of New York.

69. That upon examination, the said charges were falsely and maliciously made. That a Judge of the Criminal Court of the City of New York dismissed all charges on October 17, 2022.

70. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefore. That the commencement and/or continuation of the criminal proceedings by the defendant against the plaintiff was without probable cause, was with actual malice and was terminated in favor of the plaintiff.

71. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind

mfr:Williams.dennis.compl 1-17-23

and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community, incurred legal fees and related expenses, and the said plaintiff has been otherwise damaged.

72. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

WHEREFORE, plaintiff demands judgment against the defendants as follows:

On each claim for relief, judgment in an amount in excess of the jurisdictional limits of all lower courts, and plaintiff demands an additional sum of punitive damages against each individual defendant to be determined at the trial of this action; and in the event plaintiff is a prevailing party, attorney's fees; and interest, costs, and such other relief as to this Court shall seem just and proper.

Dated: January 19, 2023

Yours, etc.,

Michael F. Rubin

Michael F. Rubin, Esq.
The Michael F. Rubin Law Group, P.C.
225 Broadway, 3rd Floor
New York, NY 10007
Tel: (212) 691-9393
MFR@MFRLGPC.com

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**
DENNIS WILLIAMS,

Plaintiff(s),

VERIFICATION

INDEX No.

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MAUREEN CAREY (BADGE NO. 5178), P.O. JOHN
DOE #1 and P.O. JOHN DOE #2,

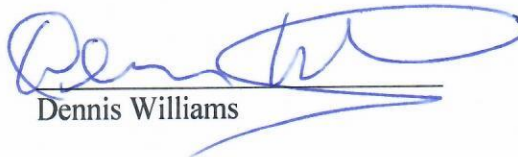
Defendant(s).

STATE OF NEW YORK }
COUNTY OF NEW YORK } ss.:

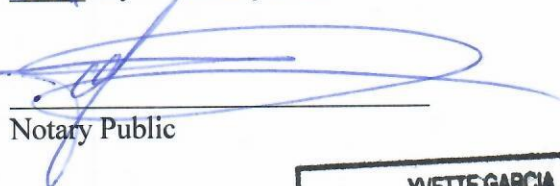
I, Dennis Williams, the undersigned, am the plaintiff in the above captioned matter and swears that the following is true:

I have read the annexed Summons and Verified Complaint, know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters I believe them to be true.

Dated: January 30, 2023


Dennis Williams

Sworn to before me this
30th day of January 2023


Notary Public

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